Gmail AshLe' Penn <ashlepenn.ap3@gmail.com>

Your January 28, 2026 Commitment – Evidence and Required Corrective Action

3 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Aug 11, 2026 at 2:39 PM
To: FAULKNER Sonya <Sonya.Faulkner@odhs.oregon.gov>
Cc: yazmin.wadia@doj.oregon.gov, "Laurie Hernandez (she/her/ella)" <laurie.k.hernandez@odhs.oregon.gov>, alicia.l.reynolds@odhs.oregon.gov, Milne David <david.milne@odhs.oregon.gov>, Hopkins Skye F <skye.f.hopkins@odhs.oregon.gov>, "Kimberly A. Beck" <kimberly.a.beck@ojd.state.or.us>, richard.e.moellmer@ojd.state.or.us, attorneygeneral@doj.oregon.gov, alexis.l.amorelli@odhs.oregon.gov, countycounsel@washingtoncountyor.gov, SARAH.A.BURWELL@dhsoha.state.or.us

Sonya Faulkner_1.28.mp3

Sonya Faulkner_4.28 (1).mp4

Ms. Faulkner,

I am adding this before I send, because of what occurred between my daughter and caseworker David Milne today, with me on the line, and it will not wait for a 72-hour reply.

This morning, caseworker David Milne transported Al-mira to a medical appointment. Afterward, at the current foster placement, I was on the phone asking Mr. Milne to state why my daughter cannot come home. He repeated only "safety plan." When I asked what that plan would protect her from, he first said it would ensure "no children are being beaten with a belt"; when I asked whether that was actually alleged, he admitted it was "an example," then shifted to statements Al-mira made at the hospital. As I pressed him to name any real, current danger, my daughter began screaming — Mr. Milne had closed the car door on her arm as she reached in for her paperwork and a toy the doctor had given her. He turned and walked away from a crying, injured child and said he was calling law enforcement. A neighbor came out to stay with Al-mira and witnessed that Mr. Milne had been aggressive with her. Paramedics were called. Al-mira was taken to the hospital with bruising to her arm and is awaiting an x-ray as I write this. I have the entire incident recorded.

This is not isolated. Weeks earlier, Mr. Milne told my daughter he would hit her — that he "would hit her but won't give her the satisfaction." Today the State's own caseworker physically injured her.

Understand precisely what that means. ODHS removed Al-mira from me on September 6, 2025 on the stated theory that she faced physical danger. In ODHS's custody since, she has been shuffled among placements, told by your caseworker she deserved to be hit, and today had her arm shut in a car door by that same caseworker — physical injury to the child by the very agency that invoked physical danger to take her. The State cannot claim my daughter is safer in its care than in mine while the State is the source of the harm.

I am therefore no longer only asking you to correct a fabricated record. **I demand that Al-mira be returned to my care immediately — today** — and that ODHS state, in writing, any lawful basis it claims for keeping an injured child in the custody of the agency whose own employee injured her. Every hour she remains is now a decision you are making with direct knowledge of what your staff did to her.

Preserve everything from today: Mr. Milne's report and any ODHS communications about this incident, the law-enforcement call he says he made, the paramedic and hospital records, and the placement records. I am preserving my recording and the witness's account.

Also, on January 28, 2026, on a recorded call you told me that if you found “any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court.” You also said you would review the representations at issue and reconnect. You have not done so.

This email removes any possibility that you “don’t have access” to the record you are responsible for. Attached are:

- **Formal Notice of Fabrication, Material Omission, and Required Action under Your Recorded Commitment** (PDF), which walks through the false testimony, omissions, and fabrications in ODHS’s own words and documents; and
- **Audio and transcript excerpts of the dependency hearings and calls** you told me you did not have, including your own January 28, 2026 statements and the sworn testimony ODHS personnel used to secure and maintain jurisdiction and default.

You now have, in your inbox, (1) the case record ODHS chose to present to the juvenile court and (2) ODHS’s own files, transcripts, and recordings that disprove that record point-by-point. The contrast is not a “difference of opinion.” **It is perjury**, fabrication, and knowing omission of exculpatory facts with a reckless disregard for the truth by your staff and by the AAG, used to secure and maintain custody of my daughter despite the well-documented harm your agency is aware of in removing a child from their caregiver and despite the disparate treatment you, yourself, acknowledged to me with regard to families of color in your district.

There is no amount of acceptable perjury in a dependency case. Once you are on written and recorded notice that your agency lied to the court to obtain jurisdiction, to default a parent your own records showed was locatable and participating, and to characterize a non-offending Black mother as dangerous while ignoring and concealing your own exculpatory evidence, **you do not get to point at “the court’s findings” and walk away**. Jurisdiction entered on false evidence is not self-justifying. It is the injury.

You told me you recognize the racism in your county and that you talk about it regularly. **This is that racism in operation:** a child-welfare agency “policing” a parent it has no lawful business interfering with the care, custody and control of their child, manufacturing evasion from its own misdirected notices, converting my assertion of constitutional and statutory rights into “danger,” and suppressing the recantation and service defects that would, and should, have stopped the removal and default. You cannot credibly claim to care about racism in your system while you sit on a record like this ***and do nothing.***

At this point, you face a simple choice:

1. **Honor your recorded commitment** and use your authority to correct what your agency has done:
    - Move the juvenile court to set aside the October 31, 2025 default and every judgment resting on it under ORS 419B.923;
    - Put the withheld facts, recantation, and service defects on the record;
    - Identify in writing which ODHS representations you now concede were false, unsupported, or materially incomplete and those which you continue to stand behind, with specific record citations;
    - **Refer the identified employees for perjury and professional-conduct review; and**
    - Preserve all records described in the attached notice.
2. **Or make a conscious decision to leave a known fabricated record in place** and continue separating a child from her mother on findings you know your own file contradicts.

You no longer have the option of saying you “didn’t know,” “didn’t have the hearings,” or “the court already decided.” You have the hearings. You have your own words. You have ODHS’s own documents, in one place, in a format any attorney or judge or leader in your position can follow.

I am giving you seventy-two (72) hours from receipt of this email to acknowledge in writing that you have received and opened the attachments and to tell me, in plain terms, whether you intend to:

- Move the court to set aside the default and judgments and return my child to me (even if only while the court processes these fabrications - but in acknowledgement that you have no basis to keep her from me)
- Disclose the withheld facts and the recantation to the court, and
- Initiate referrals for perjury and professional-conduct review as outlined in the attached notice.

If you choose to do nothing, I will treat that as your deliberate decision to leave a known fabricated record in place and to continue endorsing it. At that point I will proceed accordingly, including elevating this beyond your office and pursuing federal action against your agency.

This is not a request for your discretion over my daughter's placement. It is a demand that you stop hiding behind orders your agency obtained through lies, and that you either correct what you now know to be false or own, in writing, your refusal to do so.



2025-09-08 - ODHS Protective Custody Report.pdf

2025-09-08 - Proof of Service.pdf

2025-09-08 - Shelter Order.pdf

2025-09-08 - State's Dependency Petition.pdf

2025-09-17 - ODHS Report.pdf

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Sender notified by
Email Tracker

Sonya_Faulkner_08.11.26.pdf

Sender notified by
Email Tracker

7 attachments

SonyaFaulknerByte.mp4
5517K

Courtroom110L_20251031-0904_01dc4a456ae71440.trs
9K

Courtroom120L_20250908-1319_01dc20c3370ebd3c.trs
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Courtroom110L_20251014-1017_01dc3cf3c16a4940.trs
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Courtroom110L_20260223-0904_01dca4a367ee8b96.trs
7K

2025-02-10 - OHDS Report-compressed.pdf
96K

2025-09-08 - ODHS Fact Findings Report_compressed.pdf
8228K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Wed, Aug 12, 2026 at 9:53 AM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>, Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>

Good morning Ms. Penn,

I had obtained the shelter hearing recordings and reviewed the testimony. I understand how important accuracy and clarity are in these situations. After reviewing the information, I had not found any indication that the employee committed perjury or engaged in concerning professional conduct. It appears the issue stems from a difference in interpretation and perspective. The caseworker's statement relates to their need for direct access to you, your household, and the other children in the home in order to confirm a safe environment and develop an appropriate safety plan. This need for direct access is a standard and essential part of ensuring child safety.

I recognize that ODHS policies are complex, communicating with your caseworker is the best approach to getting your questions and concerned answered.

If you wish to request that the case be dismissed or your child, be returned to your care, I encourage you to request a special court hearing be set or attend your next court hearing and speak directly with the Judge. This will give you the opportunity to share your perspective and ask for any specific actions you believe are appropriate.

I also want to let you know that there will be a shift in caseworker assignment. Our hope is that this transition supports improved communication, a clearer understanding of expectations, and continued progress with the case plan. We recognize how important it is for you to feel heard and supported, and we believe this change will help strengthen collaboration going forward. Skye will reach out to you to discuss those details.

Sincerely,

Sonya Faulkner (she/her)

District 16 Interim Manager

Washington County

Sonya.Faulkner@odhs.oregon.gov

503-559-0544

OREGON DEPARTMENT OF
Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Tuesday, August 11, 2026 2:39 PM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>; Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>; Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us>; Richard Moellmer <Richard.E.MOELLMER@ojd.state.or.us>; attorneygeneral@doj.oregon.gov; Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>; countycounsel@washingtoncountyor.gov; Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>
Subject: Your January 28, 2026 Commitment – Evidence and Required Corrective Action

Think twice before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.

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If you choose to do nothing, I will treat that as your deliberate decision to leave a known fabricated record in place and to continue endorsing it. At that point I will proceed accordingly, including elevating this beyond your office and pursuing federal action against your agency.

This is not a request for your discretion over my daughter’s placement. It is a demand that you stop hiding behind orders your agency obtained through lies, and that you either correct what you now know to be false or own, in writing, your refusal to do so.

424.242.3374
ashlepenn.ap3@gmail.com
Portland, OR

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AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Aug 12, 2026 at 10:42 AM
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Cc: Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>, "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>, Milne David <DAVID.MILNE@odhs.oregon.gov>, Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>, Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>, Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>

Ms. Faulkner,

Your response is not a review of the record. It is a conclusion without analysis, citations, findings, or accountability.You cite no ODHS Policy.

You state that you obtained the shelter-hearing recordings, reviewed the testimony, and found “no indication” of perjury or concerning professional conduct. You do not identify what portions of the recordings you reviewed, what agency records you compared against the testimony, what factual findings you made, or which of the specific sworn statements identified in my notice you have concluded are true.

Instead, you invoke a generalized need for “direct access” to me, my household, and my children. That does not answer whether ODHS personnel gave false sworn testimony about historical facts already established—or disproved—by records in ODHS’s possession. Present access to my home cannot retroactively turn a false statement into a true one. It cannot cure fabricated testimony. It cannot convert the omission of exculpatory information into a legitimate “difference in interpretation.”

You promised, on a recorded line, that if you found that ODHS had perjured itself or engaged in unlawful conduct, you would handle it with your employees and notify the court. You now claim to have reviewed the relevant evidence. Yet you have refused to state a position on the actual sworn representations at issue.

These are not vague concerns. They are specific statements that ODHS personnel made under oath or placed in official records:

1. **“Mother did not engage in any services and actually failed to do any of the services.”**
   Marquand gave that testimony, then later admitted in the same hearing that I “has engaged in those assessments,” qualifying only that she believed the engagement was “limited.” ODHS possessed my neuropsychological evaluation, parenting education, domestic-violence-service records, releases, agency-contact records, and other documentation of engagement. The question is not whether you presently want access to me. The question is: **what record allowed Marquand to testify that I had engaged in none of the services?** Identify it.SF_Committment.pdf

2. **“Mother refused to pick this child up from the hospital” and refused to protect her.**
   ODHS’s own Protective Custody Report records that I could not get to the hospital except by bus, that it would take hours, that I could not get time off work as expected, and that I arranged for the maternal great-uncle to go to the hospital. ODHS approved him as a relative placement within approximately twenty-four hours. Arranging an approved relative placement when transportation is unavailable is not refusing to retrieve or protect a child. What record supports the word “refused”? SF_Committment.pdf

3. **The sworn allegation that I coached Al-mira to recant.**
   ODHS recorded a supposed concern about coaching at approximately 2:30 p.m. on September 6, 2025—before my first contact with Al-mira at approximately 5:00 p.m. A theory that I coached a statement before I had contact with my daughter is not an interpretation. It is temporally impossible on ODHS’s own timeline. No agency record identifies a witness, recording, observation, or other evidence that I coached her. Identify the evidence you relied on in concluding this allegation was not concerning professional misconduct.SF_Committment.pdf

4. **The representation that the hotline-call count established neglect, abuse, substance use, or parental deficiency by me.**
   A hotline call is not a founded finding. ODHS’s own intake history distinguishes founded, unfounded, unable-to-determine, screened-out, duplicate, and pending reports. The record described in my notice shows one historical founded failure-to-protect finding tied to violence by another person; it does not support presenting a total count of calls as proof that I abuse, neglect, or lack the ability to parent my child. Tell me which specific founded finding you contend supports the narrative ODHS gave the court.SF_Committment.pdf

5. **The suggestion that I presented a current substance-use safety concern.**
   Marquand invoked “significant concerns” about substance use while admitting under oath that ODHS had not had meaningful contact with me to fully assess or obtain information about substance use. A concern that ODHS admits it never assessed is not evidence. What competent evidence did you find that supports this allegation, and what safety threat did ODHS identify as flowing from it?SF_Committment.pdf

6. **The assertion that I was unavailable, evading service, or could not be found.**
   ODHS’s own diligent-efforts materials document my correct address through multiple sources, telephone contact, email correspondence to which I responded, contact with caseworkers, and contemporaneous communications. Yet the agency relied on a transposed address, did not use my responsive email channel for service, did not obtain court-ordered alternative service, and then obtained default on a representation that I could not be located. This is not a matter of “direct access.” It is a documentary contradiction that went to the court’s authority to proceed against me.SF_Committment.pdf

7. **The assertion that I made little or no meaningful effort toward visitation.**
   ODHS failed to provide a workable plan, restricted contact while Al-mira was hospitalized, placed her more than thirty miles away, did not provide transportation assistance, and then attributed the predictable consequences of those agency choices to me. The record also contains inconsistent entries concerning whether visits occurred. Please identify the evidence on which you concluded that this was simply a difference of perspective.SF_Committment.pdf

8. **The omission of the recantation and the actual stated basis for the 19-minute reversal of release.**
   At 5:40 p.m. on September 6, 2025, ODHS told me it could release Al-mira to me. At 5:59 p.m., ODHS reversed course based on an attributed statement concerning self-harm if returned to my care. The statement was later recanted, and the agency knew that before the shelter hearing. Yet the stated basis was not pleaded as a jurisdictional allegation, and the recantation was not fairly presented to the court deciding whether custody would continue. You acknowledged on the January 28 call that a recantation should have been considered. Your email does not address this at all.SF_Committment.pdf

These are the items you were asked to review. You did not answer them. You did not identify one policy. You did not identify one statute, OAR, court order, safety threat, condition for return, or factual basis for the demand you now characterize as “direct access.”

A request for current access may be relevant only to a properly identified and lawful assessment process. It does not answer whether ODHS knowingly made false historical claims about service engagement, hospital pickup, coaching, substance use, visitation, service, or the circumstances of removal. Oregon defines “conditions for return” as a written statement of **specific behaviors, conditions, or circumstances** that must exist before a child can safely return—not a generalized instruction to submit to unrestricted access or cooperate with an agency that will not identify the factual premise for its demands.oregon.public

Your statement that I should “communicate with [my] caseworker” is particularly inadequate in light of your acknowledgment that a caseworker transition is now necessary. Reassignment does not cure a false record. It puts a new worker in a position to repeat it unless ODHS corrects it.

I am therefore requesting a written response, by **[date and time]**, that provides:

1. Every recording, transcript, report, case note, assessment, email, text message, or other material you reviewed before concluding there was no perjury or concerning professional conduct;
2. An item-by-item finding on each of the eight matters above, including whether ODHS maintains, retracts, corrects, or disputes the statement;
3. The particular evidence and record citation ODHS relies upon for every statement it continues to maintain;
4. The exact statute, OAR, ODHS policy, court order, and case-plan provision you contend authorizes the claimed need for direct access;
5. The specific present danger threat, if any, that ODHS claims is attributable to me;
6. The current written conditions for return, stated as specific behaviors, conditions, or circumstances;
7. Confirmation that ODHS has opened a record-correction review for the false, unsupported, materially incomplete, and misleading statements identified in my notice and in this email; and
8. Confirmation that ODHS will not repeat or rely on disputed accusations as established fact without disclosing the contrary records and my written dispute.

Finally, your email ignores the child-safety incident involving David Milne on **August 11, 2026**, when he closed my daughter in a car door. That event requires an immediate, separate response. Please identify:

1. Whether an incident report was made and its report number;
2. Whether Al-mira was examined or assessed for injury, by whom, when, and with what finding;
3. Whether medical evaluation was offered or arranged;
4. The names of everyone present and whether written accounts were obtained;
5. All existing recordings, vehicle information, texts, case notes, transportation records, and communications concerning the incident;
6. What preservation instruction has been issued; and
7. What interim safeguards are in place to ensure Mr. Milne does not transport, physically manage, or otherwise place Al-mira in an unsafe situation while the incident is reviewed.

Your email says you recognize how important accuracy and clarity are. Accuracy requires you to identify the statement, compare it to the record, and state whether ODHS stands behind it. Clarity requires you to name the policy and facts you are invoking. You have done neither.

You cannot characterize government perjury, unsupported sworn testimony, and the omission of exculpatory evidence as a “difference in interpretation” without identifying the interpretation, the evidence, or the rule that supposedly permits it.

On Wed, Aug 12, 2026 at 9:53 AM FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> wrote:

> Good morning Ms. Penn,
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> I had obtained the shelter hearing recordings and reviewed the testimony. I understand how important accuracy and clarity are in these situations. After reviewing the information, I had not found any indication that the employee committed perjury or engaged in concerning professional conduct. It appears the issue stems from a difference in interpretation and perspective. The caseworker’s statement relates to their need for direct access to you, your household, and the other children in the home in order to confirm a safe environment and develop an appropriate safety plan. This need for direct access is a standard and essential part of ensuring child safety.
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> I recognize that ODHS policies are complex, communicating with your caseworker is the best approach to getting your questions and concerned answered.
>
> If you wish to request that the case be dismissed or your child, be returned to your care, I encourage you to request a special court hearing be set or attend your next court hearing and speak directly with the Judge. This will give you the opportunity to share your perspective and ask for any specific actions you believe are appropriate.
>
> I also want to let you know that there will be a shift in caseworker assignment. Our hope is that this transition supports improved communication, a clearer understanding of expectations, and continued progress with the case plan. We recognize how important it is for you to feel heard and supported, and we believe this change will help strengthen collaboration going forward. Skye will reach out to you to discuss those details.
>
> Sincerely,
>
> Sonya Faulkner (she/her)
>
> District 16 Interim Manager
>
> Washington County
>
> Sonya.Faulkner@odhs.oregon.gov
>
> 503-559-0544
>
> OREGON DEPARTMENT OF Human Services
>
> ---
>
> **From:** AshLe' Penn <ashlepenn.ap3@gmail.com>
> **Sent:** Tuesday, August 11, 2026 2:39 PM
> **To:** FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
> **Cc:** Wadia Yazmin <Yazmin.Wadia@doj.oregon.gov>; Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>; Reynolds Lou <ALICIA.L.REYNOLDS@odhs.oregon.gov>; Milne David <DAVID.MILNE@odhs.oregon.gov>; Hopkins Skye F <SKYE.F.HOPKINS@odhs.oregon.gov>; Kimberly A. Beck <Kimberly.A.Beck@ojd.state.or.us>; Richard Moellmer <Richard.E.MOELLMER@ojd.state.or.us>; attorneygeneral@doj.oregon.gov; Amorelli Alexis L <ALEXIS.L.AMORELLI@odhs.oregon.gov>; countycounsel@washingtoncountyor.gov; Burwell Sarah A <SARAH.A.BURWELL@odhs.oregon.gov>
> **Subject:** Your January 28, 2026 Commitment – Evidence and Required Corrective Action
>
> **Think twice** before clicking on links or opening attachments. This email came from outside our organization and might not be safe. If you are not expecting an attachment, contact the sender before opening it.
>
> Sonya Faulkner_1.28.mp3
>
> Sonya Faulkner_4.28 (1).mp4
>
> Ms. Faulkner,
>
> I am adding this before I send, because of what occurred between my daughter and caseworker David Milne today, with me on the line, and it will not wait for a 72-hour reply.
>
> This morning, caseworker David Milne transported Al-mira to a medical appointment. Afterward, at the current foster placement, I was on the phone asking Mr. Milne to state why my daughter cannot come home. He repeated only "safety plan." When I asked what that plan would protect her from, he first said it would ensure "no children are being beaten with a belt"; when I asked whether that was actually alleged, he admitted it was "an example," then shifted to statements Al-mira made at the hospital. As I pressed him to name any real, current danger, my daughter began screaming — Mr. Milne had closed the car door on her arm as she reached in for her paperwork and a toy the doctor had given her. He turned and walked away from a crying, injured child and said he was calling law enforcement. A neighbor came out to stay with Al-mira and witnessed that Mr. Milne had been aggressive with her. Paramedics were called. Al-mira was taken to the hospital with bruising to her arm and is awaiting an x-ray as I write this. I have the entire incident recorded.
>
> This is not isolated. Weeks earlier, Mr. Milne told my daughter he would hit her — that he "would hit her but won't give her the satisfaction." Today the State's own caseworker physically injured her.
>
> Understand precisely what that means. ODHS removed Al-mira from me on September 6, 2025 on the stated theory that she faced physical danger. In ODHS's custody since, she has been shuffled among placements, told by your caseworker she deserved to be hit, and today had her arm shut in a car door by that same caseworker —

physical injury to the child by the very agency that invoked physical danger to take her. The State cannot claim my daughter is safer in its care than in mine while the State is the source of the harm.

I am therefore no longer only asking you to correct a fabricated record. **I demand that Al-mira be returned to my care immediately — today** — and that ODHS state, in writing, any lawful basis it claims for keeping an injured child in the custody of the agency whose own employee injured her. Every hour she remains is now a decision you are making with direct knowledge of what your staff did to her.

Preserve everything from today: Mr. Milne's report and any ODHS communications about this incident, the law-enforcement call he says he made, the paramedic and hospital records, and the placement records. I am preserving my recording and the witness's account.

Also, on January 28, 2026, on a recorded call you told me that if you found "any unlawful or concerning information in the record or any information that we perjured ourselves, I would absolutely handle that with our employees and also notify the court." You also said you would review the representations at issue and reconnect. You have not done so.

This email removes any possibility that you "don't have access" to the record you are responsible for. Attached are:

- **Formal Notice of Fabrication, Material Omission, and Required Action under Your Recorded Commitment** (PDF), which walks through the false testimony, omissions, and fabrications in ODHS's own words and documents; and
- **Audio and transcript excerpts of the dependency hearings and calls** you told me you did not have, including your own January 28, 2026 statements and the sworn testimony ODHS personnel used to secure and maintain jurisdiction and default.

You now have, in your inbox, (1) the case record ODHS chose to present to the juvenile court and (2) ODHS's own files, transcripts, and recordings that disprove that record point-by-point. The contrast is not a "difference of opinion." **It is perjury**, fabrication, and knowing omission of exculpatory facts with a reckless disregard for the truth by your staff and by the AAG, used to secure and maintain custody of my daughter despite the well-documented harm your agency is aware of in removing a child from their caregiver and despite the disparate treatment you, yourself, acknowledged to me with regard to families of color in your district.

There is no amount of acceptable perjury in a dependency case. Once you are on written and recorded notice that your agency lied to the court to obtain jurisdiction, to default a parent your own records showed was locatable and participating, and to characterize a non-offending Black mother as dangerous while ignoring and concealing your own exculpatory evidence, **you do not get to point at "the court's findings" and walk away**. Jurisdiction entered on false evidence is not self-justifying. It is the injury.

You told me you recognize the racism in your county and that you talk about it regularly. **This is that racism in operation:** a child-welfare agency "policing" a parent it has no lawful business interfering with the care, custody and control of their child, manufacturing evasion from its own misdirected notices, converting my assertion of constitutional and statutory rights into "danger," and suppressing the recantation and service defects that would, and should, have stopped the removal and default. You cannot credibly claim to care about racism in your system while you sit on a record like this ***and do nothing.***

At this point, you face a simple choice:

1. **Honor your recorded commitment** and use your authority to correct what your agency has done:
   - Move the juvenile court to set aside the October 31, 2025 default and every judgment resting on it under ORS 419B.923;
   - Put the withheld facts, recantation, and service defects on the record;
   - Identify in writing which ODHS representations you now concede were false, unsupported, or materially incomplete and those which you continue to stand behind, with specific record citations;
   - **Refer the identified employees for perjury and professional-conduct review; and**
   - Preserve all records described in the attached notice.
2. **Or make a conscious decision to leave a known fabricated record in place** and continue separating a child from her mother on findings you know your own file contradicts.

You no longer have the option of saying you "didn't know," "didn't have the hearings," or "the court already decided." You have the hearings. You have your own words. You have ODHS's own documents, in one place, in a format any attorney or judge or leader in your position can follow.

I am giving you seventy-two (72) hours from receipt of this email to acknowledge in writing that you have received and opened the attachments and to tell me, in plain terms, whether you intend to:

- Move the court to set aside the default and judgments and return my child to me (even if only while the court processes these fabrications - but in acknowledgement that you have no basis to keep her from me)
- Disclose the withheld facts and the recantation to the court, and
- Initiate referrals for perjury and professional-conduct review as outlined in the attached notice.

If you choose to do nothing, I will treat that as your deliberate decision to leave a known fabricated record in place and to continue endorsing it. At that point I will proceed accordingly, including elevating this beyond your office and pursuing federal action against your agency.

This is not a request for your discretion over my daughter's placement. It is a demand that you stop hiding behind orders your agency obtained through lies, and that you either correct what you now know to be false or own, in writing, your refusal to do so.



2025-09-08 - ODHS Protective Custody Report.pdf

2025-09-08 - Proof of Service.pdf

2025-09-08 - Shelter Order.pdf

2025-09-08 - State's Dependency Petition.pdf

2025-09-17 - ODHS Report.pdf

2025-09-22 - Proof of Service.pdf

2025-10-13 - ODHS Report.pdf

2025-10-14 - Order Re. Jurisdiction.pdf

2025-10-21 - DeclarationofDiligentEffortstowardService.pdf

2025-10-21 - Return of Non-Service.pdf

2025-10-23 - ODHS Report.pdf

2025-10-28_AffidavitRe.EffortstoServeParent.pdf

2025-10-30 - ODHS Letter Re. Service Efforts.pdf

2025-10-31 - Judgment of Jurisdiction.pdf

2025-11-12 - ODHS Report.pdf

Sender notified by
Email Tracker

Sonya_Faulkner_08.11.26.pdf

Sender notified by
Email Tracker